

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT
ASSOCIATION, INC., CONSOLIDATED CHASSIS
MANAGEMENT, LLC, CMA CGM S.A., COSCO
SHIPPING LINES CO. LTD., EVERGREEN LINE
JOINT SERVICE AGREEMENT, FMC NO. 011982,
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK
A/S, MSC MEDITERRANEAN SHIPPING
COMPANY S.A., OCEAN NETWORK EXPRESS
PTE. LTD., WAN HAI LINES LTD., YANG MING
MARINE TRANSPORT CORP., AND ZIM
INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

JOINT STATUS REPORT AND PROPOSED AMENDED SCHEDULE

Complainant Intermodal Motor Carriers Conference of the American Trucking Associations (“IMCC”) and Respondents Ocean Carrier Equipment Management Association, Inc. (“OCEMA”), Consolidated Chassis Management, LLC (“CCM”), CMA CGM S.A. (“CMA”), COSCO Shipping Lines Co. Ltd. (“COSCO”), Evergreen Line Joint Service Agreement, FMC No. 011982 (“Evergreen”), Hapag-Lloyd AG (“Hapag-Lloyd”), HMM Co. Ltd. (“HMM”), Maersk A/S (“Maersk”), MSC Mediterranean Shipping Company S.A. (“MSC”), Ocean Network Express Pte. Ltd. (“ONE”), Wan Hai Lines Ltd. (“Wan Hai”), Yang Ming Marine Transport Corp. (“Yang Ming”), and Zim Integrated Shipping Services (“Zim”) (collectively the “Parties”) have conferred and submit this Joint Status Report and Proposed Amended Schedule.

Since the Presiding Officer's Third Amended Scheduling Order (dated Sept. 23, 2021), the Parties have engaged in significant discovery and are working to finish fact depositions. A summary of that deposition and document discovery is below. However, given the number of remaining depositions and the Christmas and New Year holidays, the Parties respectfully request a limited extension to complete fact depositions in this proceeding. Complainant proposes an extension of approximately eighteen business days; Respondents propose an extension of approximately thirty-two business days.

Deposition Discovery

Complainant served personal and Rule 143(b)(6) notices on September 3 (CCM – Wilson; CCM – Tock; Hapag-Lloyd - Barattini), September 23 (Hapag-Lloyd – 143(b)(6)), September 24 (ONE – Armstrong; ONE – 143(b)(6)); October 1 (HMM – Compton; HMM – 143(b)(6), October 8 (CMA CGM – 143(b)(6); COSCO – Grossi), October 12 (Evergreen – Wang; Evergreen – 143(b)(6)), October 14 (MSC – Roveccio; MSC – 143(b)(6); ZIM – Messing; ZIM – 143(b)(6)), October 15 (COSCO – 143(b)(6); Maersk – Weisberg; Maersk – 143(b)(6); Yang Ming – Micena; Yang Ming – 143(b)(6)), October 21 (Wan Hai – 143(b)(6)), and November 19 (OCEMA – Lawrence).

Where possible, the Parties agreed to consolidate the personal and Rule 143(b)(6) deposition notices to expedite the deposition process. Since the deposition period began, the following Respondents have been deposed.

Respondent	Deponent	Date
CCM	Mike Wilson	09/20/2021
CCM	Ken Tock	09/22/2021
Evergreen	Tom Wang (143(b)(6) designee)	11/03/2021
Hapag-Lloyd	Thomas Barattini	10/01/2021
Hapag-Lloyd	Thomas Barattini (143(b)(6) designee)	10/22/2021
HMM	Dan Compton (143(b)(6) designee)	11/17/2021

Respondent	Deponent	Date
Maersk	Thomas Weisberg ((143(b)(6) designee)	11/19/2021
ONE	Ronnie Armstrong	10/06/2021
ONE	Ronnie Armstrong (143(b)(6) designee)	10/28/2021
ZIM	Dennis Messing (143(b)(6) designee)	11/16/2021

In addition, the 143(b)(6) depositions of ONE, Evergreen, and ZIM, were left open for certain categories of organizational testimony, but Complainant has proposed stipulations to avoid additional depositions. Complainant has also proposed stipulations to Yang Ming. Complainant may also need to propose stipulations for additional Respondents, including CMA CGM, COSCO, MSC, and Wan Hai, depending on the knowledge of those Respondents' 143(b)(6) designees. Finally, Complainant has proposed stipulations that will make the deposition of Jeffrey Lawrence (OCEMA) unnecessary if Respondents agree.

Pursuant to its proposed schedule, Complainant has offered the following dates for the remaining Respondent depositions:

Respondent	Deponent	Date
MSC	Vincenzo Roveccio (143(b)(6) designee)	12/03/2021
Yang Ming	Tony Micena (143(b)(6) designee)	12/06/2021
Wan Hai	143(b)(6) designee	12/07/2021
CMA CGM	143(b)(6) designee	12/13/2021
COSCO	143(b)(6) designee	12/17/2021
COSCO	Frank Grossi	01/05/2021

On November 5 and November 8, 2021, Respondents served deposition notices and subpoenas on the following IMCC individuals and non-party motor carriers, and depositions have been scheduled on the following dates:

Non-Party Motor Carrier	Deponent	Date
IMC	Mark George (143(b)(6) designee)	12/10/2021
Ability Tri-Modal	143(b)(6) designee	12/14/2021
Reliable	143(b)(6) designee	12/15/2021
Bulldog Hiway Express	143(b)(6) designee	12/16/2021
Evans Delivery	Chris Giltz (143(b)(6) designee)	12/21/2021
TCW	143(b)(6) designee	12/28/2021
Ventura	143(b)(6) designee	01/05/2021
CPG	143(b)(6) designee	01/06/2021
Party	Deponent	Date
IMCC	Dave Manning	11/23/2021 (completed)
IMCC	Tyler Rushforth	12/07/2021

For the Presiding Officer's convenience, the current proposed deposition schedule proposed by Complainant has been included in calendar format as **EXHIBIT A**, assuming the schedule extension is granted. The deposition schedule proposed by Respondents has been included as **EXHIBIT B**.

DOCUMENT PRODUCTIONS

During the deposition period, the Parties exchanged lists of alleged deficiencies in the document productions. The following table summarizes the non-party motor carriers' productions since the Third Amended Scheduling Order, dated September 23, 2021.

Non-Party Motor Carrier	Page Count	Date Produced
Bulldog Hiway Express	1	10/7/2021
Evans Delivery	12	10/7/2021

Non-party IEPs have completed document productions in response to IMCC's subpoenas. IMCC and the IEPs finalized stipulations to resolve disputes.

IMCC noted significant deficiencies in some of Respondents' document productions. Some Respondents have responded promptly with full productions; others are still outstanding. For example, CMA CGM has not finished its document production or set a date certain by which its document production will be complete. Wan Hai has progressed with its production and advised it will be completed by December 3.

The following table summarizes individual productions from Respondents since the Third Amended Scheduling Order.

Respondent	Page Count	Date Received
COSCO	7435	9/24/2021
WAN HAI	1258	10/1/2021
EVERGREEN	68	10/1/2021
MSC	12340	10/1/2021
CMA	4584	10/1/2021
HAPAG-LLOYD	101	10/14/2021
HMM	262	10/15/2021
YANG MING	235	10/15/2021
EVERGREEN	108	10/21/2021
HMM	4198	10/21/2021
ONE	186	10/21/2021
CMA	11	10/26/2021
COSCO	292	10/26/2021
HMM	13	10/26/2021
MAERSK	394	10/26/2021
WAN HAI	12	10/26/2021
ZIM	50	10/26/2021
MSC	12429	11/1/2021
ZIM	33	11/4/2021
COSCO	1	11/16/2021
EVERGREEN	1	11/16/2021
MAERSK	2	11/16/2021
MSC	1	11/16/2021
WAN HAI	6	11/16/2021
CMA	1052	11/19/2021
EVERGREEN	33	11/19/2021

Respondent	Page Count	Date Received
WAN HAI	12	11/19/2021
CCM	173	11/30/2021
CMA	602	11/30/2021
YANG MING	60	11/30/2021
MSC	6	12/1/2021
WAN HAI	14	12/1/2021
YANG MING	46	12/2/2021

Proposed Amended Discovery Schedule

While the Parties are working expeditiously to finish deposition discovery, they believe that a limited extension is necessary to complete depositions given the number of depositions remaining and the intervening holidays.

Complainant's Position:

(1) Document Productions:

Respondents identified zero substantive deficiencies in IMCC's production. But on September 29, two days before the close of document discovery, Respondents asked for additional data from certain non-party motor carriers. Those non-party motor carriers promptly complied, and Respondents have not identified any deficiencies since then.

In contrast, certain Respondents continue to produce documents in response to IMCC's First Request for Production of Documents, which were served in October 2020. For example, CMA CGM still cannot provide even an estimated date of when it will complete its document productions, which has forced IMCC to take CMA CGM's deposition off the calendar completely. And the Wan Hai deposition has been rescheduled four times as it has continued to produce documents, including as recently as December 1; its document production is still not complete as of the date this Joint Status Report is filed. Far from a "disciplined approach," the Respondents' pattern and practice of delay in producing documents (despite the Presiding

Officer's September 27 Order compelling discovery that set October 1 as the deadline to complete document productions) has extended the discovery period in this proceeding.

(2) Remaining Depositions:

Four Respondent depositions remain to be taken after the current December 10 deadline to compete depositions: CMA CGM, Wan Hai, and two COSCO depositions. In light of the personal circumstance of Anthony Micena, as set out in Respondents' statement, Complainant's counsel will work with Yang Ming's counsel to find a suitable 143(b)(6) witness in lieu of Mr. Micena if he is unable to be deposed by January 7, including potentially withdrawing the personal deposition notice for Mr. Micena.

IMCC and the non-party motor carrier document productions have been complete since September 3, except for the 13 pages produced on October 7. Respondents waited until November 5 and November 8 to notice IMCC depositions and serve non-party subpoenas, with little over a month until the close of discovery. Respondents now claim that IMCC's proposed extension provides too little time for them to review those documents, which have been in their possession for months. However, Respondents are not prejudiced by the January 7 deadline. They have had abundant time to review IMCC's and the non-party motor carriers' document productions, and Complainant's proposed schedule provides Respondents with more-than-sufficient time to further prepare. Three of the non-party motor carriers have produced 368 pages of documents in total, and two of those depositions are scheduled in the same week. As to the motor carriers with more voluminous productions, those depositions are scheduled in separate weeks. For example, Intermodal Cartage Company has produced 708,819 pages (the largest non-party production), and Respondents have already agreed to take that deposition on December 10.

In addition, Complainant is willing to collaborate with Respondents to reschedule motor carrier depositions, if necessary, within its proposed schedule to complete depositions by January 7.

In addition, Respondents' claim that taking and defending two depositions on December 7 and January 5 somehow "works a hardship" is not credible. Two depositions on the same day is routine in litigation of all sizes and scope, and nine attorneys (eight of whom are Partners or Of Counsel and experienced attorneys steeped in Commission practice and the issues in this proceeding) have noticed their appearance on behalf of Respondents, which is more than sufficient to take and defend the remaining depositions under Complainant's proposed schedule. In addition, every Respondent's counsel need not be present at every deposition of their fellow Respondents, which is contrary to common litigation practice, wasteful of both Complainant and Respondent resources, and unnecessarily prolongs the discovery schedule.

Finally, Respondents now, long after the October 1 document production deadline and at the tail end of the deposition period, seek to expand the scope of discovery by requesting two new 143(b)(6) non-party depositions of North American Chassis Pool Cooperative, LLC ("NACPC") and ChassisLeaseCo LLC ("CLC," a chassis provider to NACPC) based on "evidence adduced" at Dave Manning's December 7 deposition. Both are unnecessary. First, Respondents have already deposed Mr. Manning, who is the President and Chief Executive Officer of NACPC. The majority of Respondents' examination of Mr. Manning was devoted to NACPC and/or CLC and based on documents that have been in Respondents' possession for months. Moreover, Mr. Manning was available for the full seven hours of testimony under Rule 143(d), and Respondents finished their examination after approximately four hours. Second, Respondents chose not to subpoena NACPC during the document discovery period, even though they propounded discovery requests to IMCC related to NACPC and have been well aware of

NACPC since the beginning of this proceeding, at the very least. *See* Memorandum of Law in Support of Respondents’ Motion to Dismiss, Dkt. No. 14 at 2, n.1 (Sept. 18, 2020). Third, Respondents are free to question other non-party motor carrier witnesses at their upcoming depositions, many of whom are officers in NACPC and/or CLC. This testimony is irrelevant to this proceeding, but Respondents have ample opportunity to seek additional deposition testimony on these topics if they so wish from those witnesses and still comply with Complainant’s proposed schedule. By eliminating those two superfluous examinations, CMA CGM would be the only deposition remaining in the final *three weeks* of Respondents’ proposed schedule, with the non-party motor carrier depositions concluded by January 7 under Complainant’s schedule. This highlights why Respondents’ extra-long schedule would only serve to further delay the conclusion of fact discovery and reward Respondents for their lackadaisical approach to discovery in this proceeding.

(3) Complainant’s Proposed Schedule

Complainant respectfully requests the December 10, 2021 deadline to complete fact depositions be moved to January 7, 2022, with the remaining schedule dates moving accordingly. This extension will provide the Parties with approximately 18 additional days (excluding the observed Christmas and New Year holidays on December 24 and December 31 respectively) to complete fact depositions, as well as sufficient time to accommodate any schedule changes as necessary. Complainant believes that no further extension, as Respondents propose, will be necessary.

Complainant’s proposed amended schedule follows.

<u>Event</u>	<u>Current Date</u>	<u>New Date</u>
Complete fact depositions	December 10, 2021	January 7, 2022
Joint stipulation of facts	December 20, 2021	January 17, 2022

<u>Event</u>	<u>Current Date</u>	<u>New Date</u>
Disclosure of initial expert reports	January 20, 2022	February 17, 2022
Disclosure of rebuttal expert reports, if necessary	February 10, 2022	March 10, 2022
Expert discovery cut-off	February 24, 2022	March 24, 2022
Completion of discovery	March 10, 2022	April 7, 2022
Motions for summary decision	March 24, 2022	April 21, 2022

Respondents' Position:

(1) Document Productions: The “pattern and practice of delay” alleged by Complainant is nothing more than normal issues encountered in large, complex litigation. The Presiding Officer should not be pushed to adhere to the Commission’s compressed internal deadlines, which are designed for much simpler cases involving only two parties, in a case of this breadth and complexity.

Due to the extensive discovery requests served by Complainant and the extremely broad search terms imposed by its counsel, the thirteen Respondents and their counsel have been required to search approximately eight terabytes of data and review millions of pages of documents. Notably, Respondents did not engage in “data dumps”, a strategy that would have simplified their productions but resulted in the service of millions of pages of non-responsive documents; but, instead endeavored through the application of AI and manual reviews to produce only those documents that were responsive to Complainant’s requests. Applying this disciplined approach to their productions, Respondents have produced more than 335,000 pages of responsive documents to date.

Complainant’s efforts to portray Respondents as dilatory are overstated. In many cases, the final responsive material produced consisted not of documents, but of data on the number of carrier haulage and merchant haulage moves at certain locations. These were reports that had to

be generated by Respondents, rather than pre-existing documents which had to be produced. This worked a particular hardship on Wan Hai, which Complainant's counsel has singled out. Wan Hai is a small company that, until July, 2021, had only operated on the West Coast and had not belonged to any chassis pools operated by CCM. The CH/MH data is the last category of information required from Wan Hai and its production has been delayed because Wan Hai has been required to manually search thousands of documents to generate the report that Complainant has demanded. Other "delays" attributed to Respondents are in fact due to other causes, to wit:

(i) Counsel for Complainant was unable to articulate clearly what documents would satisfy its request for "exemplar tariffs and service contracts," and different counsel communicated inconsistent requests, necessitating considerable back and forth and multiple rounds of production;

(ii) Counsel for Complainant has continued to insist that "deficiencies" exist after Respondents advised that certain categories of documents (e.g., Request for Proposals and deliberations about withdrawal from chassis pools) did not exist, necessitating further searches and explanations;

(iii) In the case of CMA CGM, counsel for Respondents has explained that most of the responsive documents could not be accessed due to sequestration of certain servers in response to a cyberattack on that company. CMA CGM has expended considerable time, effort, and money to recover those documents, which are becoming available and will be produced as expeditiously as possible; and

(iv) requests for additional documents from Complainant's counsel, including a November 19, 2021 request for a survey of truckers and all responses thereto (Respondents have

complied with this request). In short, there is no pattern or practice of delay, simply the normal types of problems encountered in complex litigation involving multiple parties.

At the same time, the production of the third-party motor carriers subpoenaed by Respondents has not been as immaculate as Complainant suggests. As Complainant notes, three motor carriers produced a total of 386 pages in response to the same document requests that generated over 700,000 pages from another motor carrier. On the face of those facts, it is clear that some motor carriers are engaged in “data dumps” (a strategy which Respondents did not utilize) while others are not being fully responsive. In particular, many motor carrier witnesses represented by counsel for Complainant have failed to produce copies of invoices issued to their customers for chassis usage, a category of documents that Complainant’s counsel agreed in a meet and confer would be produced.

The document production issues are fairly typical of issues that arise in litigation of this type. These are issues that can and will be resolved by counsel without the involvement of the Presiding Officer, if the parties are given sufficient time to resolve them.

(2) Depositions:

Respondents have prepared and produced eleven witnesses for individual and/or 143(b)(6) depositions since September 20, 2021. Selection and preparation of witnesses responsive to Complainant’s 143(b)(6) Notices of Deposition has been a time consuming endeavor. Each Notice has typically listed twelve topics requiring knowledge of contractual negotiations, application of contractual terms, chassis operations, railroad contracts and operations, tariffs and service contracts, and sales/marketing. No single witness for any Respondent ocean carrier has personal knowledge of all of these diverse topics, requiring

extensive interviews of multiple employees from each Respondent, selection of a witness who has the broadest knowledge, and preparation of the witness who is selected to be deposed.

(3) Remaining Depositions:

A great deal of work has been done to date; however, at least 17 depositions remain to be conducted: the 143(b)(6) depositions of five Respondents; one individual deposition of a Respondents' former employee; three individuals designated as witnesses with knowledge in IMCC's Initial Disclosures (these will be combined with depositions of 143(b)(6) designees produced by subpoenaed, non-party IMCC members); and six subpoenaed, non-party IMCC members, all of whom were subpoenaed within the current discovery period. In addition, based upon information recently generated during the deposition of David Manning on November 23, Respondents plan to subpoena two additional 143(b)(6) witnesses, assuming the schedule extension is granted.

With regard to the two additional witnesses, Complainant's suggestion that the topics which Respondents which to address could have been covered in Mr. Manning's deposition are seriously flawed. Complainant's own list of witnesses identifies Mr. Manning as an IMCC witness, not a NACPC or CLC witness. In actuality, Mr. Manning was deposed in an individual capacity rather than as a corporate designee. His testimony regarding certain documents produced to Respondents put those documents, and the business relationships among various entities that are members of the complainant IMCC and other organizations, in a new context and revealed new information. Further exploration of these business relationships and information is highly relevant to the economic impact of existing chassis practices on motor carriers and to Respondents' defenses in this proceeding. Complainant should not be able to use aggressive scheduling under the guise of "efficiency" as a proxy for a veiled motion to quash. Indeed,

IMCC asserts above without any support that depositions of two NACPC related parties “seek[s] to expand the scope of discovery.” First, that is preposterous. NACPC is the chassis equipment provider set up by truckers in the American Trucking Association and in its Conference of Intermodal Motor Carriers. NACPC entities are only “third-parties” in the most technical sense of the term, but regardless, pursuing discovery from NACPC is not beyond the scope of discovery in this proceeding under any standard of discovery relevance. There is no “expansion” of discovery scope at all, particularly since the issues Respondents wish to explore were revealed by Mr. Manning’s responses to questions about a document produced by a subpoenaed IMCC member in response to Respondents’ discovery requests. Second, if this was the proper forum for such a discovery motion—which it is not—or if the Presiding Officer determined that such a motion became necessary—Respondents’ would be more than ready to explain to your Honor what exactly transpired during the deposition of Mr. Manning, and why the additional depositions are fundamentally within the scope of discovery and materially important to Respondents’ defenses in this proceeding. IMCC’s invitation to cut off relevant discovery under the guise of “efficiency” should be rejected. Respondents must be afforded sufficient time to provide the requisite notice to these new third-party witnesses and obtain information that is reasonably calculated to lead to the discovery of admissible evidence.

Finally, to paraphrase Shakespeare, Complainants doth protest too much. The extension proposed by Respondents is only modestly longer than that proposed by Complainant, will not prejudice Complainant, and provides a realistic opportunity to conclude discovery in a timely and orderly manner. There are only 18 business days remaining in this year (excluding Christmas Eve, December 24 and New Year’s Eve, December 31) and five business days in the first week of January, 2022. Yet, Complainant proposes that Respondents prepare for and

conduct or defend at least 17 depositions as well as review tens of thousands of pages of documents in preparation for same between now and January 7, 2022, a twenty-four day period which spans both the Christmas and New Year's holidays. In two instances, IMCC has "doubled up" on depositions, i.e., scheduled two depositions on the same date. Although Complainant's counsel has argued that this is a routine practice in large commercial litigation, this is not a feasible solution in *this proceeding*. For example, Yang Ming is represented by one attorney of record; and co-counsel for Evergreen is effectively a two-person law firm. "Doubling up" on depositions works a hardship on these Respondents' counsel, as well as the few lead counsel who directly examine or defend witnesses because of the complexity of the topics and the time it takes to prepare for and complete each deposition. Moreover, doubling up depositions is not necessary. Both parties agree in principle that an extension is needed—the relatively short additional time period requested by Respondents would resolve the concern.

Respondents respectfully suggest that the preparation and conduct of the scheduled depositions and remaining supplemental document productions cannot reasonably be completed within Complainant's proposed tight schedule. First, the proposed compressed schedule does not provide sufficient time to prepare the witnesses or provide room to accommodate unanticipated changes in schedules of the witnesses and counsel, particularly around the holidays. For example, the 143(b)(6) deposition of Yang Ming, and the individual deposition of its employee, Anthony Micena, was confirmed for December 6. On the evening of December 1, Mr. Micena's wife was seriously injured in an automobile accident, which will require that his deposition be re-scheduled. This is an example of an unforeseen circumstance that can require adjustments in deposition scheduling. Second, as mentioned above, Complainant's proposed schedule includes two depositions on the same date. As explained above, this works a hardship on some of

Respondents' counsel who do not have the depth of resources to cover multiple depositions on the same day, particularly given the complexity of the topics and the time it takes to complete each deposition, and therefore should be avoided. Third, due to evidence adduced at the deposition of David Manning last Tuesday, it has become apparent that Respondents will require additional evidence from North American Chassis Pool Cooperative, LLC ("NACPC") and ChassisLeaseCo LLC ("CLC"). Further, there is no need for the parties and counsel to proceed in such a hurried fashion as advocated by IMCC's counsel. Complainant has not identified any compelling need for such a rushed and compressed schedule.

Complainant excuses the unreasonable burden that would result from such a rushed schedule and suggests that Respondents "are not prejudiced by the January 7 deadline" since "nine attorneys have noticed their appearance" on behalf of the 12 Respondents. However, some of those attorneys are sole practitioners and others are associates who are not qualified to conduct or defend such a complex deposition.

(4) Respondents' Proposed Schedule:

Respondents propose an active but more orderly schedule and merely request an extension until January 31, an additional days 16 business days after January 7. Respondents propose scheduling fact depositions through January 24 in accordance with the following currently schedule depositions:

- Dec. 3: MSC 143(b)(6) (completed)
- TBD: Yang Ming 143(b)(6)/Tony Micena¹
- Dec. 7: Tyler Rushforth
- Dec. 10: IMC 143(b)(6)/Mark George
- Dec. 13: Wan Hai 143(b)(6)/Jo Wu
- Dec. 15: Reliable 143(b)(6)
- Dec. 17: COSCO 143(b)(6)

¹ Mr. Micena's deposition had been confirmed for December 6, but an auto accident which caused serious injuries to his wife on December 1 requires that it be re-scheduled.

- Dec. 21: Evans 143(b)(6)/Chris Giltz
- Dec. 28: TCW 143(b)(6)
- Jan. 5: Frank Grossi
- Jan 10: CPG 143(b)(6)
- Jan 12: Ventura 143(b)(6)
- Jan. 14: CMA 143(b)(6)
- Jan. 17: NACPC
- Jan 19: CLC
- Jan. 21: Ability Trimodal
- Jan. 24: Bulldog Express
- Jan. 31: Conclusion of depositions

Finally, since depositions may need to be rescheduled due to unexpected circumstances that are outside the reasonable control of counsel and witnesses (such as the example cited above involving Yang Ming), Respondents propose leaving the last five business days of January (January 25-28 and 31) open to accommodate depositions that must be rescheduled, thus concluding fact depositions on January 31. Notwithstanding the foregoing, to the extent that deposition rescheduling needs to occur, and with respect to the referenced new depositions, Respondents will endeavor to schedule the depositions before January 24, 2021 where feasible.² Respondents suggest that dates for the remaining tasks in the schedule (disclosure of expert reports, etc.) will be commensurately extended. Respondents' proposed amended schedule, which is only three weeks longer than the schedule proposed by Complainant, is set forth below:

<u>Event</u>	<u>Current Date</u>	<u>New Date</u>
Complete fact depositions	December 10, 2021	January 31, 2022
Joint stipulation of facts	December 20, 2021	February 11, 2022
Disclosure of initial expert reports	January 20, 2022	March 11, 2022

² Respondents may also propose stipulations to streamline noticed depositions.

Disclosure of rebuttal expert reports, if necessary	February 10, 2022	April 1, 2022
Expert discovery cut-off	February 24, 2022	April 15, 2022
Completion of discovery	March 10, 2022	April 29, 2022
Motions for summary decision	March 24, 2022	May 13, 2022

Respectfully submitted,

Dated: December 3, 2021

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EXHIBIT A

December 2021						
Su.	M.	Tu.	W.	Th.	F.	Sa.
			1 <i>Hanukkah</i>	2 <i>Hanukkah</i>	3 <i>Hanukkah</i> MSC 143(b)(6) / V. Roveccio	4 <i>Hanukkah</i>
5 <i>Hanukkah</i>	6 <i>Hanukkah</i> Yang Ming 143(b)(6) / T. Micena	7 T. Rushforth/ WAN HAI 143(b)(6)	8	9	10 IMC 143(b)(6)/ M. George	11
12	13 CMA 143(b)(6)	14 Ability Tri- Modal 143(b)(6)	15 Reliable 143(b)(6)	16 Bulldog Hiway Express 143(b)(6)	17 COSCO 143(b)(6)	18
19	20	21 Evans 143(b)(6a)/ C. Giltz	22	23	24 <i>Christmas</i> <i>Day</i> <i>(Observed)</i>	25
26	27	28 TCW 143(b)(6)	29	30	31 <i>New Year's</i> <i>Day</i> <i>(Observed)</i>	

January 2022						
Su.	M.	Tu.	W.	Th.	F.	Sa.
						1
2	3	4	5 F. Grossi/ Ventura 143(b)(6)	6 CPG 143(b)(6)	7 Complete Fact Depositions	8
9	10	11	12	13	14	15
16	17 Joint Stipulation of Facts	18	19	20	21	22
23	24	25	26	27	28	29

30	31					
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EXHIBIT B

December 2021						
Su.	M.	Tu.	W.	Th.	F.	Sa.
			1 <i>Hanukkah</i>	2 <i>Hanukkah</i>	3 <i>Hanukkah</i> MSC 143(b)(6) / V. Roveccio	4 <i>Hanukkah</i>
5 <i>Hanukkah</i>	6 <i>Hanukkah</i> Yang Ming to be re- scheduled	7 T. Rushforth/	8	9	10 IMC 143(b)(6)/ M. George	11
12	13 Wan Hai 143(b)(6) / Jo Wu	14	15 Reliable 143(b)(6)	16	17 COSCO 143(b)(6)	18
19	20	21 Evans 143(b)(6a)/ C. Giltz	22	23	24 <i>Christmas</i> <i>Day</i> <i>(Observed)</i>	25
26	27	28 TCW 143(b)(6)	29	30	31 <i>New Year's</i> <i>Day</i> <i>(Observed)</i>	

January 2022						
Su.	M.	Tu.	W.	Th.	F.	Sa.
						1
2	3	4	5 F. Grossi/	6	7	8
9	10 CPG 143(b)(6)	11	12 Ventura 143(b)(6)	13	14 CMA 143(b)(6)	15
16	17 NACPC 143(b)(6)	18	19 CLC 413(b)(6)	20	2 Ability Tri- Modal 143(b)(6)1	22
23	24 Bulldog Hiway Express	25	26	27	28	29

CERTIFICATE OF SERVICE

I certify that, on December 3, 2021, a true and current copy of the foregoing Joint Status Report and Proposed Amended Discovery Schedule was filed via electronic mail with the Secretary of the Federal Maritime Commission, and a copy was served via electronic mail on the following counsel:

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